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Date:
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DESIGN-BUILD

FIXED PRICE CONSTRUCTION CONTRACT

for

NORTHBROOK SPORTS CENTER

902-733

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DESIGN-BUILD
FIXED PRICE CONSTRUCTION CONTRACT

This Contract, made **this** 8th **day of October**, **2007,** by and between RYAN COMPANIES US, INC., a Minnesota **corporation** (hereinafter called **"**Design-Builder**"), and** North **Shore** Ice Arena, an illinois Limited Liability Coroporation (hereinafter called **"**Owner");

Wimesseth that, in consideration of the mutual covenants and agreements contained herein, Design-Builder **and** Owner hereby agree as **follows:**

Article 1 **– Scope of** the Project

Design-Builder **shall** furnish all of **the** labor**,** materials, equipment and all of **the** services necessary **for** the design and construction of an approximately 47,321 **gaf**. **ice** rink facility **and** related improvements **to** be located at Real Estate Parcel **EC**-2C in the Techny Land Development. Northbrook, Illinois**, in** accordance with **the** drawings, scope document and **any other** materials described **on** Exhibit A **attached** hereto and **the** final drawings **and** specifications **to be** prepared **based** thereon (hereinafter referred to **as the "Project**"). Both **the** design **and** construction **of** the **Project** shall be undertaken with a standard **of care,** skill **and** workmanship throughout**, consistent with** applicable **industry standards** in the area **in which** the Project **is located**. Within fourteen **business days from the** date hereof, Design-Builder shall **submit** to Owner **for its** approval final drawings and specifications setting forth in detail the requirements for construction of **the** Project, **Such** final drawings **and** specifications shall **be in** substantial accordance with **the** documents described **on** Exhibit A and shall **be prepared and** certified **by** architects **or engineers in their** respective disciplines**,** selected by Design-Builder, who are licensed in the **state** where the Project is **located**. **Design**-Builder warrants that such final drawings and specifications will comply with all applicable building codes**,** laws, ordinances and regulations in effect and enforced as of **the date** of **this** Contract. Owner **shall** furnish to Design-Builder, in a **timely manner, any necessary** program or design information regarding **Owner's** needs or requirements for **the Project** and for **any work** to be performed **by separate** contractors working directly for **Owner**. Design-Builder shall be entitled to **rely on the** accuracy and completeness of such information in the design of the Project. Additional design services for space planning of moveable office

work stations, design of custom finiture, selection **of** furnishings, artwork **and** accessories**, and** inventorying of existing **furniture and** equipment are not within the scope **of** the services to be **provided by Design–Builder** pursuant **to** this Contract **and** must **be separately** contracted **for** in **writing**. **Design-**Builder's **rates** for such additional design services **(performed by** Design-Builder's personnel**)** are: **set** forth in Exhibit **C** attached 'hereto. When said final drawings and specifications have been approved by **Owner and** Design**-**Builder, they **shall** be signed or **otherwise approved** in writing by **their appointed** #yxProjes**compeg-**723-Northdwusk**:**#piersiContai Panjost **Agreements@**mrmer **Cmimeischung Revänd 11-6-01.w.Cyner** ponytenis **die**

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representatives **and shall** supersede the **preliminary drawings, scope document and any** other materials **described** on Exhibit A. Owner agrees that it will not **unreasonably withhold** its approval **and will not act** in **any** arbitrary or **capricious manner with** respect to approval of such final **drawings and** specifications **so** long as **the** same are in substantial accordance with the documents set forth in Exhibit A.. If final drawings and specifications **for the** Project have not **been** approved **by Owner** and Design-Builder within, ten **days** after the first submittal **thereof by** Design-Builder, then either party may terminate this Contract **by** giving written notice thereof to the other **party. In** the event of such termination**,** whether by Owner or Design-Builder, Owner shall **within** 10 days thereafter pay to Design-Builder all costs (including Design-Builder's personnel **costs** at the rates **set** forth **in Exhibit C and all** out-of-pocket **costs**) which **Design**-Builder has incurred in developing **the preliminary and proposed** final drawings **and** specifications. **Upon** receipt **of such** payment, Design-Builder **shall** deliver **to Owner** uncertified **copies** of such **proposed** final drawings and specifications. In **addition**, Owner **shall pay** Design-Builder for any **other** expenses incurred **by** Design-Builder **that** Owner has given Design**-**Builder written authorization **to** incur.

Article 2 - Time of Completion

Design-Builder shall achieve Substantial Completion ***of*** the Project **not** later than **August 1**. 2008 (130**) business** days after the date **on** which **the** building **perait for the** Project-is-issued**. The** ..Contract Sum and date of Substantial Completion are based **upon** the core and **shell** permit being issued **no** later than February 19**, 2008** and building permit for the Project being issued no later than **April 1,** 2008 March 4**,** 2008. Design-Builder shall apply for the building permit **promptly** after the final drawings and specifications have been **approved by** Owner **atid** Design-Builder. However, if through no fault **of** Design**-**Builder, **the** building permit have not been issued **by** the applicable date, then **the** Contract Sum shall be increased **by** the additional costs incurred by **Design**-Builder **by** reason of such delay and/or the date for Substantial **Completion** shall **be extended by a period** equal **to** such delay**,** in the **event** that the work has already **started when delay** happens**. If** Design- **Builder** is delayed at any time in **the progress of** the work **by** any act **or** neglect of **Owner** or of any **agent** or employee of Owner or of any separate contractor employed by **Owner**, changes **ordered in the Project,** labor disputes, fire or other **casualty,** unusual delay in deliveries**,** shortages or unavailability of fuel or materials, unusual **weather**, acts of God or public enemy, govemmental action or non-action**,** or by **any** other cause

beyond the control of Design-Builder, then the date **by which** Substantial Completion is to **be achieved** shall be extended by a period equal to such delay. Design-Builder shall not be entitled to a time extension for delays that **are the result** of Design-Builder's negligence. All claims for an extension of time shall be made in writing to **Owner within** 20 days after the occurrence of **the** cause of delay or shall be deemed waived**,** but in the case **of a** continuing cause of delay, only one claim **shall** be necessary**.** Substantial Completion shall **be** *R\Pro]=new**@00063-233** Hontbreek **Spons** Cone Pried Andebets Owner **Comme** Ownych¬ånd 11-1-07 »£

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deemed to have been **achieved** when construction is sufficiently **complete so** that **Owner** can utilize **the** Project for the purpose **for which it is** intented and a certificate **of occupancy** (temporary **or** permanent**)** has been issued for the Project. Owner and Design-Builder **shall execute** a **Certificate of** Substantial Completion certifying such date as the date **of** Substantial **Completion**. As of **the** date of **Substantial** Completion**,** Owner shall assume **full** responsibility for all utilities**,** insurance, security, and all other **operational aspects** of the Project.

Liquidated Damages**. Design-**Builder **understands** that if **Substantial Completion of** entire **work** *is* not attained by **thirty** (30) calendar days after **the Scheduled** Substantial Completion Date **(the "LD**. **Date"). Design-Builder** shall **pay** Owner **Three Thousand** Seven Hundred **Dollars** (33,700) as **liquidated** damages**,** and not as a **penalty**, **for each day** that **the Substantial** Completion extends **beyond** the LD Date. The **liquidated damages** provided **herein shall** be **in lieu** of all liability for any **and** all **extra** costs, **losses, expenses**, **claims** penalties **and** any **other damages. Whether** special **or** consequential, and of whatsoever nature incurred **by Owner** which **are** occasioned by **any delay in** achitoving Substantial Completion of the entire work.

Article **3-**Contract Summ

Owner shall **pay** Design-Builder for **the** performance of this Contract, **subject** to additions **and** deductions as **provided** for herein**,** in current funds**,** the Contract Sum of **Seven** Million Seven Hundred Forty**-**Five Thousand Five Hundred Ninety-Eight Dollars **(**$7,745,598.00**)**.

Article 4 **-** Payment of **Contract** Sur

(a)

follows:

Progress Paviments. Owner shall make **payments on** account of the Contract Sum as

(i) Design-Builder **shall** submit to Owner, **on** or about the first day of each **month**, **an** Application for Payment for **the** value **of the** work completed (including materials **suitably stored** on the **site) based upon the Schedule of Values** attached **hereto** as Exhibit B and the **percentage** of completion of each item thereon. If **no** Schedule of **Values** is attached hereto, Design-Builder **shall** submit one to Owner **prior to** submitting its **first** Application for Payment.

(ii) Upon receipt of each. Application for Payment, Owner **shall bayo** the **right to** inspect **the** Project to confirm that Design-Builder's Application reflects the value of **work** actually **completed**. **If Owner discovers** that the **work actually completed** differs from **that** represented on **the** Application **for Payment**, or the work **is defective or** does **not** comply **with the** requirements of this Contract, Owner **may**

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(b)
withhold **such** sums as it **reasonably deems** necessary in light of the work actually completed until the work is completed or the defect is remedied**.**

(**iii)** Within 10 days after receipt of each Application for Payment, Owner shall **pay to** Design-**Builder the entire amount thereof**, subject **to** possible

withholding **as provided** above**,** except **that a** retainage of **5% of** the amount set forth **in each Application** for Payment shall **be withheld**. Such **payment** shall be made in the form of a wire **transfer**. No payment to Design-Builder shall constitute an **acceptance of any** work not in accordance with the requirements of this Contract,

(iv) Upon receipt **of each** payment from Owner, Design-Builder **shall deliver to** Owner its **lien** waiver in the amount **of** such payment. If requested **by Owner**, prior to receipt of the second and each **succeeding** payment, Design-Builder **shall** deliver to Owner lien waivers from its subcontractors and suppliers for **the** work covered by the previous payment received **from** Owner, **Design**-Builder guarantees **that title to all work**, materials and **equipment covered** by an Application for Payment, whether incorporated **into** the Project or not, **will** pass **to** Owner free and clear **of** all lieris**,** claims**,** security **interests and** encumbrances, **upon the** receipt **of** such **payment by** Design-Builder. Design-Builder **agrees to** pay **its** suppliers **and subcontractors** promptly after receipt **of** payment from Owner.

(v) Purchase **of FF&**E. Notwithstanding **anything** to the **contrary** contained herein, **if Design-**Builder **is** required **to purchase** furnishings**,** fixtures **or** equipment **(**"FF&E"") relating to **the operation** of the **Owner's** business at the Project **(i.e.** that **are** not required **for** the construction **of** the building that is a part of the Project) **and** the payment terms with **the** vendors of such FF&E are **different** from those provided for herein, then Owner shall make payments **to** Design-Builder **for** such FF**&**E in the amounts, and at **the** times **that** payments are due from Design-**Builder pursuant to the terms** of the contracts **entered into** by Design-Builder **for the** purchase of such FF**&E.** Owner further **agrees to guararity** payment **of** the amounts due **under** such FF**&E** purchase.contracts if required by the FF&E vendors.

Punch List Work. Upon Substantial Completion of the Project by Design**-Builder**, Design-Builder **and** Owner **shall** jointly **inspect the Project.** If there remain "punch **list"** items to be **completed,** Design-Builder and Owner shall fist **such** items and **Design-**Builder **shall** complete **said** items **within 45** 30 days thereof, **unlese**-Design-**Builder** is unable to

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complete such items due to weather conditions, wavailability of materials or other conditions beyond the central of Design-Builder

(c) Final Payment. The unpaid balance of the Contract Sum, including all sums retained pursuant to Paragraph 4 (a), (iii) hereof, shall be due and payable within 10 days after the date of Substantial Completion of the Project. Final payment shall be made simultaneously with the furnishing of a lien waiver from the Design-Builder and lien waivers from its subcontractors and suppliers for all sums paid to Design-Builder. Owner may withhold a sum equal to 150% of the estimated cost of completing any unfinished work. Thereafter, Owner shall pay to Design-Builder, on a monthly basis; the amount withheld for unfinished items as each item is completed. The making of final payment shall not constitute a release of claims that Owner may have against Design-Builder, except for claims or disputes that have been previously resolved "in writing" As a condition for final paviment. final lien waiver will be provided by Ryan Companies US. Inc.

(d)

Liens. Design-Builder shall, at all times, keep the Project free of liens arising out of the work performed pursuant to this Contract for which Design-Builder has been paid.. If any such lens are filed, Design-Builder shall, within 14 days after notice of such filing, either:

(e)

(i) satisfy such lien,

or

(ii) post a band with Owner in an amount equal to **150% of the amount** of such lien.

Late Payment. In **the** event **that any** payment **by** Owner to Design-Builder is not paid when due **Owner shall** pay **interest** on **said** unpaid amount from **the** date due to and including **the** date of payment at a variable rate **equal** to **3% per** annum in **excess** of **the** rate of interest from time **to time publicly** armounced **by** U.S. Bank National Association, **Minneapolis**, Minnesota, as **its** reference **rate, or** such lesser rate as may be the maximum rate permitted by law.

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Owner Financing**. Owner** shall, at the request of Design-Builder**,** prior to execution **of** this Contract **and** promptly upon **Design-**Builder's request thereafter**, funish** to Design- Builder **reasonable** evidence that financial arrangements have **been** made to fulfill **Owner's** obligations under this **Contract**.

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Article 5 - **Bond**

Upon Owner's **request** at any time **prior** to commencement of construction, Design-Builder shall furnish a surety bond **for** its performance of this Contact and the payment of all obligations to subcontractors arising **hereunder. If such** bond is

requested, the Contract Sum shall be increased by the full amount of the premium therefor.

Article 6-Changes in the Profect

(a)

.

Owner, without invalidating this Contract, may request changes in the Project within the general scope of this Contract, consisting of additions, deletions, alterations or other modifications, with the Contract Sum and the date for Substantial Completion to be adjusted appropriately. All changes in the Project shall be made only pursuant to a written Change Order signed by Owner and Design-Builder setting forth any adjustment to the Contract Sur and date for Substantial Completion. If applicable, the adjustment to the Contract Sum shall be determined by application of the unit prices set forth in the specifications. Otherwise, the adjustments shall be agreed upon by Design-Builder and Owner before Design-Builder proceeds on any such changes, additions or alterations.

(b) If, during the design process, Owner requests a substantial change to the design of the Project that Owner has previously approved or given Design-Builder direction to perform, the Contract Sum shall be increased by the amount of Design-Builder's additional design costs to perform such change. Design-Builder shall notify Owner of such costs and a Change Order shall be entered into prior to making such change.

(c) If, after the final drawings and specifications have been approved by Owner and Design-Builder, Owner requests. Design-Builder to submit a proposal for a change in the Project and then elects not to proceed with the change, a Change Order shall be issued to reimburse Design-Builder for any costs incurred for design services in connection with proposed revisions to the final drawings and specifications.

(d) The rates in Exhibit C shall apply to all changes that involve Design-Builder's design personnel.

Article 7- Correction of the Work

(a
)

Refected Work. Design-Builder shall, at its own expense, promptly correct work rejected by Owner that does not conform to the requirements of this Contract.

(b)

Warranty Period. If, within one year after the date of Substantial Completion **of the** Project, or **within** such longer **period** of time as may **be prescribed by** law or by the terms of any applicable **special** warranty contained in **the** specifications, any of the work **is** found to **be** defective **due** to **faulty** workmanship or materials or **not in accordance with the** requirements **of this** Contract, **and if** within **such period Owner notifies** Desigir-Builder thereof **in** writing, then **Design-Builder** shall correct the same at its expense **promptly** after **receipt of** such notice. Owner shall notify Design–Builder promptly after **discovery** of the condition. Establishment of this **one** year **warranty** period relates only to the specific obligation of Design-Builder to correct the work, and shall in **no way** affect the time within which **Design-Builder's obligation** to **comply with the** requirements of **this** Contract may sought **to be enforced.** Prior to **the** expiration of **this warranty** period**,** representatives **of Owner** and Design-Builder shall inspect the Project **and** jointly determine if **any** work does **not** conform **to** the requirements of this Contract, and Design-Builder shall promptly correct such uon-conforming **work,** provided that **such** non-conforming work **is** not **the** result. of abuse**,** neglect or improper or inadequate care and maintenance by Owner,

Article **8-** Insurance

(**a**
)

Design-Builder's Liability Insurance. Design-Builder shall purchase and maintain such insurance as **will** protect it (**and, where stated**, Owner) from the **claims** set forth below which may arise out of **the** performance of this Contract, whether such performance be **by** Design-Builder **or by any subcontractor** of Design-Builder or **by anyone directly or** indirectly employed **by any of** them **or by** anyone

for whose acts any **of** them **may be liable:**

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i)

Worker's **Compensation and Employer's** Liability **insurance** for claims **under workers**' compensation**, disability benefit and other similar** employes benefit acts, in the amounts required **by** law and **claims** for damages arising **out of bodily injury, occupational sickness or disease,** or death **of its** employees, **in the** amounts specified below**:**

Insurance Worker's Compensation
Employer's Liability

Limits **Statutory**
Requirement
$1,000,000

Commercial General Liability insurance for **claims** for damages arising **out** of **bodily injury, sickness** or disease, personal **injury or** death of **any person, other** than **its employees, and for damages arising** out of injury to **or** destruction of tangible property **(**other than **the** Project)**, in the amount of $5,000,000. (**including umbrella SIAProf-**nõuded-jaz-Murtibrook** Spons **Center** Project **Agreements**
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coverage) per occurrence. Owner shall be named as an additional insured, including Winnetka Hockey Club and Wilmette Hockey Association, under such liability insurance policy to the extent of any liability arising out of Design-Builder's work. Such insurance policy shall include premises operations (including explosion, collapse and underground coverage), elevators (if applicable), independent contractors, completed operations (for not less than one year after the date of Substantial Completion) and broad form property damage coverage. This coverage will be primary and non- contributory over any insurance the Owner may maintain.

Automobile Liability insurance for claims for damages for bodily injury or death of a person or property damage arising out of the ownership, maintenance or use of all owned, hired and non-owned motor vehicles. The combined single liability limit for bodily injury and property damage shall be $5,000,000 (including umbrella coverage) per occurrence. This coverage will be primary and non- contributory over any insurance the Owner may maintain.

Contractor to provide renewal certificates as evidence of insurance prior to expiration of above referenced (WC, GL. Auto) policies.

Certificates of such insurance, showing such coverages to be in force, shall be furnished to Owner prior to commencement of construction

(b)

Builders Risk Insurance,

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The **Project** Unless the Project consists of an addition to or alteration of an existing structure **(**in **which** case it **shall be purchased and** maintained **by** Owner**),** Design**-**Builder **shall** purchase **and** maintain, **until** the date **of** Substantial Completion, "all-risk**"** builder's risk **insurance** covering the Project in **an** amount **not less** than **$6.894,000 $**5,655,346, **and with a deductible**

amount

not

to

exceed $**2,500,** The **risk** associated **with such** deductible shall **be bome** entirely **by** Owner. Such insurance shall be **provided** on a non**-reporting**, completed value **basis**. Design-**Builder's** subcontractors **and** suppliers and **Owner** shall be named as additional **insitreds under such** policy. **Any** insured loss under such policy shall be **adjusted** with Owner and **Design**-**Builder** and **made** payable to both Owner and Design-Builder **(subject** to any applicable mortgagee clause**) as trustee for the** insureds, **as their interests may appear**. A **certificate of**

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'insurance showing such coverage to be in force shall be finished to Owner prior to commencement of construction. The Contract Sum shall be increased by the amount of all costs incurred by Design-Builder in repairing and/or replacing work which is damaged or destroyed by fire or other casualty, less insurance proceeds received by Design-Builder.

Owner's Property Equipment and Furnishings. Owner shall be solely responsible for insturing any of Owner's material, equipment or furnishings that are brought onto the Project Site. In addition, Owner shall provide builders risk insurance for the work performed by any of Owner's direct contractors. Design-Builder shall have no responsibility to provide insurance for any of the above items.

Waiver of Subrogation. Owner and Design-Builder waive all rights against each other, and against their respective agents, employees and subcontractors, for damages caused by perils covered by the insurance to be maintained pursuant to Paragraph 8(b) hereof, except such rights as they may have to the proceeds of such insurance. I during the Project construction period, the Owner insures properties, real or personal or both, at or adjacent to the site by property insurance under policies separate from those insuring the Project, or

if after **final** payment **property** insurance is to **be** provided **on** the completed **Project** through **a policy or policies other than those** insuring **the Project** during **the** construction period**, the** Owner **stall** waive all **rights against** the Design**-**Builder, and against its respective agents**; employees** and subcontractors, for **damages** caused by **perils** covered **by this** separate property insurance. If the policy **of** insurance to **be provided** pursuant to Paragraph **8(b)** hereof, or **any** separate property insurance**, require** an endorsement for **continued coverage** where **there is a** waiver **of** subrogation, the party **providing** such insurance **shall** cause such **policy** to be so endorsed.

(d) Notice of **Cancellation**. All insurance policies **provided by either** party to **this** Contract shall contain a **provision** requiring **the insurer to give** a minimum of **30 days** advance written notice to **the other party** of cancellation or modification of **the** terms of the **policy**.

Article 9 - Termination **of** the Contract.

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Termination **by** Design-**Builder** If work on **the** Project is stopped **(**through no **fault** of Design-Builder) for a period **of 30 days** under order of any **court or** other public authority

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having jurisdiction**,** or as a result of any **governmental act such** as a **declaration** of **national** emergency making fuels or materials unavailable, or if Owner wrongfully **fails** to make **any payment** to Design**-Builder within** 20 30 days after Design**-Builder gives** Owner written notice of such non-payment,

Design-Builder **may** stop work and terminate this Contract and recover from **Owner** payment **for** all **design** costs**,** all work completed**,** actual loss sustained **upon** any materials, **equipment**, tools and machinery, all of Design-Builder's overhead **costs** and reasonable anticipated profit and such other damages **as** Design-Builder may sustain by **reason** thereof. If **the** termination **is caused** by anything **other than** a default **by** Owner, Design-Builder **may** recover **all** of the **above except that Design-Builder shall** only **be** entitled to receive a proportionate share of its reasonable anticipated profit, **based** upon the work performed**.**

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Termination by Owner If Design-Builder materially **breaches this** Contract, is **adjudged** a bankrupt, or if it makes a general assignment for **the** benefit of its creditors, or if a receiver **is appointed** on account of its insolvency, or if it persistently or repeatedly refuses **or fails**, except in **cases** for which extension of time is provided**,** to **supply enough** properly skilled workers **or proper** materials, or if it fails to make prompt payment to subcontractors **or for** materials or labor, or disregards laws, ordinances, rules, regulations or orders of any **public** authority having jurisdiction, and if such breach **or** other condition continues for **10** days **after** written notice thereof **by** Owner to Design-Builder, then Owner may, without prejudice **to** any **right** or remedy, terminate this Contract and take possession of the site and of **all** materials, equipment**, tools**, **construction** equipment and **machinery thereon owned by** Design**-**Builder **and may** finish the Project **by** whatever methiod it may deem expedient. In **such** case. Design-Builder shall not be entitled to receive any further payment. If Owner's **costs** to complete **the** Project exceed **the unpaid balance** of the **Contract** Sum, Design-Builder shall **pay the** difference to Owner: This obligation **for** payment shall survive **the** termination of **this Contract.** If Owner **so** terminates this Contract, Design-Builder shall, **upon** Owner's request, immediately assign all subcontracts **and** purchase orders **to** Owner **so** that Owner may **expeditiously complete the Project**.

Termination **for** Convenience. Owner may, at any time and in its **sole** discretion, terminate this Contract at its convenience. **Should Owner** so terminate this Contract**,** Owner sball **pay** to Design**-**Builder all amounts due pursuant to Paragraph 9(a) hereof**, including** Design-Builder's **overhead** costs and reasonably anticipated profit and **such** other **damages** as Design-Builder may sustain,

Article 10 **-** Miscellaneous **Provisions**.

(a) Owner and Design **Builder Representatives**. Owner **and** Design-Builder shall each appoint a representative with **full** authority to act **on behalf of each party**, Owner's **representative shall be** and **Design-Builder's representative** shall be Erik Magsamen. **Communication** between **the parties** shall, **whenever possible, be** accomplished **by the** above representatives.

(b) **Ownership of** Design Documents. **The drawings,** specifications and **other design** documents prepared **by** Design Builder **or its** design **consultants** pursuant **to this** Contract are the **property of** Design-Builder or **its design** consultants and Design-Builder or its design **consultants** shall retain all common law, statutory **and other reserved rights, including the** copyright thereto. However, Owner shall **have a "**perpetual" **royalty-free** license **to** reproduce, distribute **and otherwise** use **such drawings,** specifications **and other** design documents **for** additions to **of** remodeling **of the** Project, provided that. **Owner** shall indemnify**,** defend and **hold** harmless Design-Builder **and its** design **consultants** from **any** claims and liabilities arising from such use thereof.

(c) Survey **and** Easements, Owner **shall furnish** a **current** ALTA/ACSM land title survey of **the** Project **site** showing the boundaries**,** dimensions and topography **thereof** and the location **of** all utilities, easements **and other restrictions**. Owner shall **obtain** all easements necessary for access to the Project site, including easements **for** installation and maintenance of utilities.

(d) Supervision **and** Construction Procedures. Design-Builder shall supervise

and direct the Project and shall be solely responsible for all construction means, methods, techniques, sequences and procedures, and for coordinating **all** portions **of the** work **to** be performed **by** Design-**Builder** under **this Contract.** Design-Builder **shall employ a competent** superintendent who shall be stationed at the Project site during the progress of **the** Project. Design-Builder **shall** be **responsible** to Owner **for the acts and** omissions **of** all **of** its **employees** and **all** subcontractors of Design-Builder **and their agents** and **employees**. Design-Builder **shall** at **all times enforce strict** discipline and **good order** among its **employees and** other persons carrying **out the** work **to be** performed **by** Design-Builder **under this** Contract **and shall** not employ on **the Project any** unifit person **or** anyone **not** skilled in the assigned **task**.

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Labor and Materials. Unless otherwise provided in **this** Contract, all materials used **in the** Project **shall be** new. Design-Builder shall provide **and pay** for all labor,

services, materials, equipment, tools, machinery, utilities, transportation and other facilities and services necessary for the proper execution and completion of the Project.

(Quality Assurance and Testing. Design-Builder shall establish, and implement a written quality assurance and testing program that is appropriate for the Project. Owner shall have the right to review such program and receive copies of any test reports, if requested. Owner shall have the right, at Owner's expense, to perform any additional testing or inspection that it deeins necessary. If such additional testing reveals the presence of defective or non-conforming work, Design-Builder shall pay the cost of such testing.

(8) Taxes. Permits, Fees and Bonds. Design-Builder shall pay all sales, consumer, gross receipts, use and other similar taxes required by law and imposed, as of the date of this Contract, upon the labor and materials provided. by Design-Builder or any of its subcontractors. Design-Builder shall be entitled to an increase in the Contract Sum to the extent that an increase in the aggregate of such taxes payable by Design-Builder hereunder results from any change in the laws, enacted after the date of this Contract, creating.or modifying such taxes. Design-Builder shall secure and pay for the building pernit and all other governmental permits (except zoning and land use permits and fees), licenses and inspections necessary for the proper execution and completion of the Project, including utility availability and hook-up charges, which are legally required as of the date of this Contract, Design-Builder shall not be required to pay any special assessment charges for public improvements and other municipal charges for the payment of capital improvements, Owner shall be responsible for any required platting or subdivision and shall pay all fees in connection therewith, and Owner will also be responsible for all permits, licenses and fees relating to the operation or use (as opposed to the construction) of the Project, including (but not limited to) storm water discharge permits for the operation of the facility and air emission permits. Owner shall provide any bonds, guarantees or other forms of security required by local governmental units having jurisdiction over the Project relating to on-site or off-site improvements.

(h) Royalties and Patents. Design-Builder shall pay all royalties and license fees, and shall defend all suits or claims for infringement of any patent rights and save Owner harmless from loss on account thereof and shall survive termination of the Agreement.

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Concealed Conditions. **Should there** be **discovered unknown** physical conditions below the **surface of the** ground or concealed conditions in an existing structure, differing materially from those ordinarily encountered in work of **the** character **provided** for **in this** Contract**, or should the same** be at variance with the **conditions** indicated in **the drawings** and specifications **for** the Project**, then the** date **by which** Substantial **Completion** is **to be** achieved **shall** be **extended by the** period of the **delay resulting** therefrom and the **Contract Sum shall** be **increased by** the amount of all **costs** incurred **by** Design**-**Builder by reason thereof, **provided** that a written claim therefor is submitted to Owner **within 20 days** after **the** first observance of the **conditions** by **Design-Builder**. Design-Builder **has reviewed the subsurface** exploration report **prepared by** Terracon, **dated February** 9, 2007 (the **"**Soils Report**)**, **and relied on this** information in designing **the Project and establishing the** Contract Sum **and** the **date** for **Substantial** Completion**.** Actual subsurface **conditions that** materially **differ** from **those identified in the Soils** Report, **or** from those **which are** reasonably inferable therefrom, shall constitate a concealed condition under this provision. Design**-**Builder acknowledges that *it* **has familiarized itself** with the Project site and taken what it believes to be a reasonable number of soil borings.

0) **Cleaning** Up**.** Design-**Builder** shall at all times keep **the** Project **site** free from accumulation **of waste** materials **or** rubbish caused **by** its operations. **At** Substantial Completion **of** the **Project**, Design-Builder shall remove all of its **surplus** materials, rubbish, tools, equipment and machinery **from the** Project site**,** and shall clean all glass surfaces **and** leave **the** Project in a **"broom** clean" **condition.** If Design-Builder **fails** to clean up **at the** completion **of** the Project, and such failure continues for **5 days** after notice **thereof to** Design-Builder, Owner may perform such **clean** up **and the** cost thereof shall **be deducted** from the Contract Surn.

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Access. Owner and its **representatives shall** at all times have access to the **Project,** and Design**-**Builder **shall** permit **and** facilitate **inspections** of

the Project **by** Owner **and its** representatives**.**

(1) **Work** by **Owner.** Owner shall have the right **to** perform work related to the **Project with** its own forces and to award **separate** contracts **therefor**, **provided** such work does not **interfere** with the work of Design**-**Builder. **Owner** shall not award **contracts** to any **contractor** who is not **signatory to** a collective bargaining agreement **with** a **local** AFL-CIO Building **Trades** Union without **the** written approval **of** Design-Builder. Owner **will provide for** the **coordination** of such separate work with **the** work of the Design**-**Builder, **who** shall **cooperate** therewith**.** Owner **shall be**

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responsible to provide all necessary insurance for the work of such contractors. Owner agrees to 'cause its employees and any such separate contractors to abide by all federal, state and local safety laws and regulations and to comply with Design-Builder's safety program for the Project.. Owner further agrees to insert the following language into all contracts it awards that involve work on the Project prior to the Date of Substantial Completion:

Indemnification. (Subcontractor or Vendor) agrees to assume the entire responsibility and bability for all damages or injury to all persons, whether employees or otherwise, and to all property, arising out of, resulting from, or in any manner connected with the performance of its, work or occurring or resulting from the use by (Subcontractor or Vender), its agents or employees, of materials, equipment, instrumentalities or other property, whether the same be owned by Ryan Companies US, Inc., (Subcontractor or Vendor), or third parties, and to the fullest extent permitted by law (Subcontractor or Vendor) agrees to defend, indemnify and save harmless Ryan Companies US, Inc. and their agents and employees, from, and against all such claims and liabilities including, without limiting the generality of the foregoing, claims and liabilities for which Ryan Companies US, Inc. may be or be claimed to be liable, and to reimburse Ryan Companies US, Inc. for all legal fees and disbursements paid or incurred to enforce the provisions of this paragraph; and (Subcontractor or Vendor) further agrees to obtain, maintain and pay for such Commercial General Liability insurance coverage as will insure the provisions of this paragraph to the fullest extent, available. (Subcontractor or Vendor) shall name Ryan Companies US, Inc. as an additional insured on (Subcontractor's or Vendor's) commercial general liability insurance policy and provide Ryan Companies US, Inc. with a certificate of insurance evidencing such coverage,

(m) Indemnification. **To the fullest extent permitted by law,** Design-**Builder shall indentify,** defend and hold harmless Owner, its **officers, directors,** employees **and** agents**, from** and **against** all **claims, suits**, **demands,** damages**, losses**, liabilities, **and expenses**, including reasonable **attomeys'** fees, arising out of or resulting from the performance of **this** Contract**,** other than any such claim, damage, loss **or** expenses caused **solely** by **the** gross negligence or willful **misconduct of** Owner**; and** provided **the** indemnity **obligation of Design-**Builder under this Article 10(m) **shall not** exceed in the **aggregate**, the amount **of** the Contract Sum set **forth** in Article 3, as such Contract Sum is finally adjusted under the terms **and** conditions of **this** Contract **provided that any such** claim, **damage,** loss **or expenses** (i) is **attributable** to **bodily injury**, sieleteSS, disease or death, or to **injury to or** destruction **of tangible property (other than** the **Project** icolf)**, and** (**ii)** is spused **or alleged to** be **caused in whole or in part** by **any negligent** or

willfin act or omission of Design **Builder, any** subcontractor **of Design** Builder, anyone directly or indirectly-employed by **any of them**, or anyone **for** whose **nots any of them may** be liable. Owner **shall notify** Design Builder of any **claim** under

this indemnity promptly **after Owner** becomes **aware** of same, so as **to** avoid. **prejudice to Design**-Builder**;** and Design-Builder shall have the right to defend in **any action with** respect to such claim **with counsel** reasonably acceptable to Owner. This article 10(mm) shall **survive the** termination **of** the contract.

(n) Notices. All **notices** permitted or required by **this** Contract shall be in writing and **shall be** deemed to have **been** given **when** personally delivered to **the** respective personS **whose** name **appears below** or **when deposited in** the United States mails, certified **or** registered mail, postage **prepaid** and addressed as follows:

If **to**
Design-Builder**:**

If to Owner:

Ryan Companies US,
Inc.
55 Shuman
Boulevard**, Suite 800**
Naperville, Illinois
60563
Attention**:** Jim Herbst

North Shone Ice Arenia, LLC
#:C/o Alby Roth**.**

Attention:
Wildmand Harroldfel

22.5 bl. Wackik Suite 2600 Chicago, ILLINOL 60606

Either party may change the **address** for **mailing** of notices to it hereunder and**/or** the **person** to **receive** such notices **by giving** 10 days written notice thereof **to the other party in the** marmer above provided.

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Governing Law, This Contract shall be governed by and construed in accordance with **the laws of** the state where **the** project is located.

(p) **Binding** Effect **and** Assignment. **This** Contract shall be **binding** upon and shall inure **to** the benefit **of the** parties **hereto** and their respective successors and assigns. Neither party **to this** Contract **shall** assign **any** interest in this Contract without the written **consent** of **the** other party. **No permitted** assignment **by** either

party, however, shall release it from primary **liability** for the performance of its **obligations** hereunder.

(9) Hazardous Substances. Buried Tanks **and Wells,** Owner represents and warrants **to** Design-Builder that Owner has no knowledge of **the** existence on the **Project** site of any so- called **"**hazardous **or** toxic substances**"** (**including, but not** limited **to**, mold**,** mildew and other similar microbial conditions)**, buried tanks** or **wells** as **defined and/or regulated by** federal, state **or** local **laws or** regulations**. Should** any **such** substances, tanks of wells **be** encountered in the performance of **the work,** Design**-**Builder shall inunediately cease **work** and notify Owner thereof. Owner shall promptly thereafter **cause** any such substances, tanks or wells to be removed **in** accordance **with** all applicable laws. Design-Builder shall not **be** required to resume **work** until such substances**, tanks or wells** have **been** so removed; **and**. Owner **shall** provide Design-Builder with **written** evidence of compliance with applicable **laws in the** removal of such substances, **tanks** or wells as Design-Builder may **reasonably** request. If **the** remediation **of** the **hazardous** substances, buried tanks or wells only affects a portion of **the Project** site, Design-Builder agrees to continue working on portions of **the** Project that **are** unaffected **so long as** such **work does not** present a safety **hazard to workers on** the **Project**. **The date by** which Substantial **Completion is** to **be achieved** shall be extended by the **period of** delay resulting therefrom and the Contract **Sum shall** be increased **by** any **additional costs reasonably incurred by** Design**-Builder** due **to** such cessation **and delay.** If **such** substances, tanks **or wells** have not been **removed as** required herein within 30 days from **the date of** Design-**Builder's** notice **to** Owner, **then**

Design-**Builder may** terminate this **Contract** by written notice **to Owner and recover** from **Owner the** amounts provided in **Paragraph** 9(a). Irrespective **of** whether **or** not this Contract shall have **been so** terminated by Design-Builder**,** Owner shall indemnify, **defend and hold** harmless Design- Builder and **all of** its **employees** and subcontractors from and against any and all liability, loss, cost **and** expense arising by reason of the presence of such **hazardous substances**, tanks **or** wells **on the Project site**, except such as may result from **the gross** negligence **of** Design-**Builder** or its subcontractors.

(r) Consequential Damages**. Design**-Builder and **Owner** waive claims against each **other for consequential** damages arising out of or relating to **this Contract**. **This** mutual waiver **includes:**

(1)

(ii)

darnages incurred **by** Owner for rental **expenses**, **for** losses of **use**, income, **profit**, financing**,** business **and reputation, and** for loss of management **or employee productivity or of** the services of such persons; and damages incurred by Design-Builder for principal office **expenses** including **the** compensation **of** personnel stationed **there, for losses of financing.**

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business **and reputation**, **and for** loss **of** profit except **anticipated profit** arising directly from **the Work**.

This mutual **waiver is** applicable, **without limitation,** to all consequential damages due to either party's termination **in** accordance with Article 9.

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Project **Closeout.** Prior **to receiving** final payment, Design-Builder shall furnish Owner **with the** following**:**

One operation and maintenance manuals

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One set of record/**as-built** drawings (**blue** prints) for the entire Project;

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Any special warranties or guarantees that Design**-**Builder secures;

(iv)

A project directory **listing all** names, addresses **and phone** numbers of Design-Builder's subcontractors who worked on the **Project**

Entire Agreement: This Contract **represents the** entire and integrated agreement between **Owner** and Design-**Builder** pertaining **to the** Project, and supersedes all prior **negotiations,** representations or agreements**, whether** written or oral. This Contract may **be** amended only by a written instrument signed by **both** Owner and Design-Builder.

(u) Allowances**. Design-**Builder has **included in the** contract **sum** the allowances **as** stated in the **attached Exhibit** "A**".** shall include in the Contract **Sum** all allowances stated in **the** drawings **and** specifications. **Unless** specified **otherwise** herein, each allowance shall include all **of** Design-Builder's **costs (**labor, installation costs, materials**,** equipment, subcontractor costs**,** taxes, freight, **etc.) for** that **portion** of the **Project (but no** overhead and profit**).** Whenever **the** actual costs **covered by the allowance are** more **or less than the** allowance**; the** Contract **Surn** shall **be** adjusted accordingly by **Change** Order. In **the** event **that** there are savings in **the net** sum of the **allowance** vehtes, **theme** savings will be divided between Owner **and Design** Builder at 50**% to** ouch-**party**:

(v) Addendum. The terms **and provisions** contained **in any** Addendum **or**

Exhibit which is **attached bereto** are **incorporated herein by reference and made** a part of **this Contract**.

Article 11- Arbitration **and Legal Costs**

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Arbitration. All claims or disputes between the **parties** to **this** Contract arising out **of** or relating **to this** Contract, **or the** breach **thereof shall** be **decided by** arbitration in accordance **with** the Construction **Industry Arbitration Rules** of **the** American Arbitration Association then in **effect**, unless the parties hereafter agree otherwise**.** This provision shall **be specifically** enforceable in **any** count of **competent jurisdiction.** Notice of **demand** for arbitration **shall be filed** in writing **with** the **other** party **to this** Contract, **and with the** American Arbitration. Association. The demand shall **be** made within a reasonable time after the dispute has **arisen**. **In** no event **shall** the demand for arbitration be made **after the** date when the applicable **statute of** limitations would bar institution **of a legal or equitable proceeding based** on **such** claim, dispute **or other matter** in **question**. All **arbitration** proceedings shall be conducted in **Chicago**, Illinois **Minneapolis**, **Minnesota,** and prehearing discovery in the time **and** manner provided **by the then offective** Federal **Railes** of Civil **Procedure** shall be **permitted.** The award rendered by **the arbitrator** or arbitrators **shall be** final**, and** judgment may be entered upon it in accordance with applicable law in **any court having** jurisdiction. **Unless** otherwise agreed **in** writing, Design-Builder **shall** carry **on the work and** maintain its **progress** during **any arbitration** proceedings," **and** Owner shall continue to make payments to Design-Builder in accordance **with the** terms of this **Contract except** for **the** specific **items** that are in dispute.

(b) Legal **Costs.** If either party **hereto shall** file for arbitration or bring suit **against the other** party to enforce **the** terms of **this** Contract, the losing **party** shall **pay** to the **prevailing** party **that** percentage **of the** prevailing **party's** costs and expenses **incurred in** such action, including reasonable attorney's **fees,** in an amount **equal** to **the percentage** that the **amount of** the judgment or award received **by** the prevailing party bears to **the** total amount claimed **by** such party **(**but in no event **more than** one hundred **percent (100**%) of such **costs and expenses)**; **provided** that if **the** prevailing **party** has previously rejected **a** bona **fide written** settlement offer from the other **party** in an amount **greater** than the amount **of the** judgment: **or award** received**, then the prevailing** party **shall not** be entitled to **reimbursement** for **any** of its costs and **expenses**.

Article 12-Certain **States**.

If a Contract is **governed by the laws** of **any of** the following states**, the** following **provisions shall be** applicable **thereto**, and **shall control over** any other provisions of this **Contract** which are inconsistent therewith**:**

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License Requirements. Contractors are required by law to be licensed and regulated by the contractors' state license board which has jurisdiction to investigate complaints against contractors if a complaint regarding a patent act or omission is filed within four years of the date of the alleged violation. A complaint regarding a latent act or omission pertaining to structural defects must be filled within ten years of the date of the alleged violation. Any questions concerning a contractor may be referred to the registrar, contractors' state license board, P.O. Box 26000, Sacramento, California 95826.

IN WITNESS WHEREOF, Design-Builder and Owner have executed this Contract as of the date. first above written.

OWNER:

NORTH SHORE ICE
ARENA, LLC

By:

(Signature
)

R. CER

MANAGER

(Printed Name and Title)

DESIGN-BUILDER:

RYAN COMPANIES US, INC.

By:

Raskebre

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(Signatu
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ROBERT GOODPANTER I PRES...

(Printed Name and Title)

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Exhibit A

Preliminary Drawings**, Scope** Document and Other Documents

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Exhibit **A**

Northbrook Sports Center

Scope of Work

The tubing will be placed on combination, tubing space/rebus supports **that** are fabricated **from -145" wire** and welded to 22Ga**.** base plates. These **supports are** placed on 50 centers down, the **length** of the tink**.**

Ice Floor Temperature Control**: Supply and** install a RTD in the **floor that** will cycle the refrigeration system based **on** actual ice tempesture**.** This **is** connected **by 2**-wire **shielded** cable encased **in** PVC conduit**. The** signal operates a microprocessor that will **cycle** the refrigeration based upon ice **temperature.**

Underground Main Piping**: Supply and install 8" pre-**insulated steel main piping**.**

This piping will have field insulated Etting and/or weld joints.

Refrigeration **Systems**: **Indirect** system utilizing **R-**134a primary **refrigerant (This** is a replacement refagerarit **and** is not **affected** by **the** phase out of R-22 and is **not** as **dangerous** as ammonia.) **and** calcium chloride secondary refrigerant, and rated **at** 120 TR **(**nominal**).** The reftigestion **wit** is **a Carrier** 30HXC20GM-6**-**CA that **will cool** 1008 USGPM ftoin **18°F** to 15oF.

The **secondary refrigeration** system will have a **main,** and a standby purip. The pumps will be **Armstrong** rated at 1000 USGPM @ 65'hd with a 21% CACL splation at **15°**F. The **pumps** will have **30** hp premium efficiency motors.

The tower will be a Baltimore Aircoil **V-**line **or** Evapco **cooling** tower with two 5 hp**. premium** efficiency **fan** motors. There will **be** a remote **sump** fabricated from carbon **steel** plate **with an** epoxy coning. There **will** be a main and a standby condenser pump which will be an Armstrong cated **at 325** USGPM @.35′hd with a premium **efficiency 7.5** hp motor.

The **heat reclaim** system will **utilize the condenser** water as **the heat source for the** snow **melt** coil and the underfloor heat systems,

The pumps for **the snow melt pit coil and the underfloor** bent will be **Armstrong** with 2 hp premium efficiency motors.

All cold surfaces**, both piping** and **equipment,** will be insulated and **will have a vapor bazzier**.

The snowmelt coil **will be** installed in à pit constructed by others.

Startup**:** Supply labor and material to **check** and test syster. We **will supply standby** labor at the tie the owner makes the first ice sheet,

Warranty: All labor and material is guaranteed for one year from **the date** of startup.

ICE MAKING - **BY** ICE BUILDERS, INC. ~RINK ÉS

85′ x 50' rink with a sand floor,

Underfloor heat tubing will be installed in sand.

The mains will be **schedule** 40 **carbon steel (A53** GB**)** with schedule 80 carbon steel (B106 Gib**)** serrated **nipples connected to** 1" PE3408 SDR155 **polyethylene** tubing **held** in place **with** two stainless steel **gene clamps** (Ideal) utilizing "Loctite 2" sealant **at** the **serrations and** spaced **at** 182 **on** center.

Once the system has been **instilled** and tested **at 80-PSI** with compressed aít, it is **to be covered** with **a 6" sand layer** that is to be **graded** to +/- 1½"- **Ice** Floor**: 37** rigid insulation, vapor barrier, **and** sand **to** FEE

The **headers** are fabricated of schedule 40 carbon steel (**A53** GrB) with schedule 80 carbon steel **(**A106 **GrB) serrated nipples connected** to 1**" PE3408 SDR** 15.5 **polyethylene** tubing held **in place with two** stainless steel gear clamps (ideal) utilizing **"Loctite** 2" **sealant** at **the** serrations, and **spaced at 31/2**" on center.

The tubing **will** be placed on combination tubing space/rebar **supports that** are fabricated from **145"** wite and **welded** to 22Ga. base plates. These supports are placed on 3'0" centers down the length of **the** rink.

Ice Floor Temperature Control Supply and install a RTD in the floor **that** will **cycle the refrigeration** system based **on** actual ice **temperature. This** is connected by **2**-wire shielded **cable** encased **in** PVC conduit. The **signal** operates a microprocessor **that will cycle the** refrigeration based **upon** ice temperature**.**

Exhibit "A"

Northbrook Sports Center

Scope of **Work**

Underground Main **Piping: Supply** and install **6 pre-**insulated steel main piping**.** This **piping will** have Held insulated firing **and/or** weld **joints.**

Refrigeration System: The existing proposed Indirect **system** utilizing R**-717 (Ammonin) primary** refrigerant **will** be increased in capacity **to**. 140 TR. The **secondary refifigestion** system will have a **main and** a standby pump. **The** pumps **will be** Amstrong rated **at 400 USGPM @** 65 hd with a 21% CACL solution at **15°F**; The pumps will have premium **efficiency** totors**. The evaporative condenser will** be increased **in** capacity **to** match the new **refrigeration** capacity. **The** remote sump will be increased in size **to match** the new evaporative condenser. The condenser water **pumps will be** increased in size to match **the** new evaponitive condenser capacity: **The** heat reclaim**, system will** be modified to include the capacity **for the underfloor** heat. We will supply a small electric **boiler**, **coil and pamp** for **the** snow

melt for the new **rink.** The snow melt **coil** will **be** installed **in** a **pît constructed** by others.

Exclusions**:** Furniture, window blinds, **phone** system, **data and** phone **witing,** exercise equipment**, fireplace**(s), left turn lane work on Rounders Deve

1. BUILDING **SIZE:**

§

Exhibit "A"

Northbrook Sports Center

Scope of Work

47,321 gross square feet

5.00 acres

2. LANDSITE SIZE:

3. PARKING

158 catsy

4. CEILING **CLEARANCE:**

DASHER BOARDS:

22-87 clear in **the** ice rink, 13-2" to **bottom** of steel-in front**/lobby portion** of the building.

Rink Systems**, Thc.,** 85'200' with 28' **radius** corners, Legacy Elite dasherboard **system! 42" high x 6" wide,** hot dip galvanized steel framework,

Two 30' **long x 5' deep** players boxes on one side of fink with exist opening on back. Two ***6'*** long penalty boxes, and one 8**' long scorets box** on opposite **side** of tink

Six **30" wide** players/penalty gates with heavy duty hinges and double bar **gate** latches.

Two **36"** wide access gates with heavy duty hinges and double

bax **gate** latch**.**
One **10' witle double door** equipment gate with heavy duty hinges**,** slide
bar, and casters.
Ice side pushbuttons on **all** gates with
shielding,
11/2" thick white **high density**
poly Ending
1/2" x 8" colored **polyethylene**
kickplate.
" thick colored polyethylene
caprail.
3/8" thick white polyethylene backer panels inside box **section** area complete with water bottle shelving**..**
5/8" thick x **6' high** tempered glass shielding on ends
& **radius** of tink.
1/2**"** thick x 6' high tempered **glass** shielding on **sides** of tink**, except in**
front of **players** boxes, 2" thick x 6" high tempered glass **shielding** along sides, between, and behind box sections.
Three safety comer post **pads** where shielding
tenninates.
Two 9-1**/2" wide** x **27**' **long polyethylene players benches and** two **9-1/2"** wide x **6'** long **polyethylene penalty benches**. Include **galvanized steel support** posts. **Benches** to be **easily removable**. 2 x 6 treated **wood elevated** flooring in box sections covered with " plywood and loose laid **3/8"** cut resistant rubber **flooting**. Includes inised **conches** walkway.
1" 18**"** x **96" polyethylene** scorekeepers **table** with **plated** steel, supports. Table to **be** easily removable
All necessary hardware to install
Dasherboard **sytem**.
Three year warranty.

ICE MAKING-BY ICE BUILDERS, INC.
6.
.
200' x **85*** dink with a sand
floor.
Underfloor heat tubing will be installed in
sand**.**
The mains will **be schedule** 40 cubon steel (A53 **GB) with schedule 80** carbon steel **(8106 Grb)** serrated nipples **connected** to **1**" PE3408 SDR15.5 **polyethylene** tubing **held** in **place** with two stainless steel gear clamps **(Ideal**) **utilizing "Loctite** 2" sealant at the serrations **and spaced** ac 182 on center:
Once **the** system has been installed and tested at 80 **PSI with** compressed air**,** it is to **be covered with** a **6"**sand layer fant is to **be** graded **to +/- 1/2".**
Ice Floor: **3"** rigid insulation, vapor **barrier**; and **sand**
to F.FE..
The headers are fabricated of schedule 40 **carbon** steel (A53 GEB**) with** schedule 80

chabon steel (A106 GrB**) serrated** ripples connected to **1"** PE3408 SDR 15:5 polyethylene tubing held in place with two **stainless** steel **gear: clamps (ideal)** utilizing **Loctite** sculant at the acreations and **spaced** at 31/2" on **center.**

C

01/21/2008 12:15

6303573958

Exhibit "A"

Northbrook Sports Center

Allowances.

ALLOWANCES-TOTAL VALUE=$876.949

-$181,680 for permit **costs**, based **on** construction costs.

·$139,569 **forancesation** fec.

$139,120 for unsuitable soils

$**100,000** for bleachers.

- 100,000 for landscaping.

$64,080 **for** Village Transportation Impact Fee

-$15,000 for ComEd connection charges.

- $15,000 For audio/visual system

.- $13,500 for **security**

- $75,000 for kitchen equipment/design/**health** department fees

- $35,000 for building and interior signage

Exhibit **"A"**

Northbrook Sports
Center
Scope
Drawings

1. L-I Landscape Plan dated **3/30707** prepared by Ives Ryan **Group 2.** 1-2 Landscape Plan dated **8/30/07** prepared **by Ives** Ryan Group

CONSTRUCTION:DOCUMENTS FOR SHELL PERMIT ONLY by Economou
Partners dated 9/14/07

3. Title/Cover **Page**
4. Drawing A0. I Notes & Abbreviations
5. Drawing A02 ADA Notes & Details
6. Drawing A1 Ground Floor Plan
7. Drawing AIA Ground Floor Mezzanine Egress Plan
8. Drawing AZ Enlarged Floor **Plans**
9. Drawing A3 Ground Floor & Mezzanine Floor Covering Plan
10. Drawing A4 Reflected Ceiling Plan
11. Drawing A5 Interior Elevations
12. Drawing A6 Stairs & Railing Details
13. Drawing A7 Exterior Elevations
14. Drawing AB Door and **Window** Schedule
15. Drawing A9 Window **Schedule,** Details & Notes:
16. Drawing **A9.1** Room Finish **Schedule**
17. Drawing A10 Wall Sections
18. Drawing All Wall Sections
19. **Drawing A12** Roof Plan
20. Drawing **A13** Wall Types- U.L. **Assembly**

STAMPED ISSUED FOR PERMIT STRUCTURAL DRAWINGS **by** J.V. Henik dated **9/17/07**

21. Drawing S-1 General Notes
22. Drawing S-2 Foundation Plan
23. Drawing S-3 Roof Framing Plan
24. Drawing S-4 Detail Page
25. Drawing S-5 Detail Page

Issued for Permit CIVIL DRAWINGS by Haeger Engineering dated 9/25/07

26. Sheet 1 Title Sheet
27. Sheet 2 General Notes
28. Sheet 3 Existing Conditions/Demolition Plans
29. Sheet 4 Geometry/Paving Plans
30. Sheet $ Utility Plan
31. Sheet 6 Grading Plan
32. Sheet 7 Stormwater Pollution Prevention.Plan
33. Sheet 8 Standard Details
34. Sheet 9 Standard Details
35. Sheet 10 Standard Details

Exhibit B

Schedule of Values

North Shore Ice Centre
City/State: Northbrook, IL. Job # 902-73
Div**#** Description

C

Ryan Companies US, **Inc.**

EXHIBIT "B"
Division Totals: **10/25/07**
Ice Rink Facility
Project **Total**
Totals
BIGSF
Totals
% **WGSF**
1
General Conditions/Requirements
334,138
4.5**%**
$7.18
334,138
4.5% $
7.18
Site Construction
1,147,663
15.5**%**
$**24.67** $
1,147,663
15.5**%**
$24,67
Concrete
879,160
11.8%
$18.90
879,180
11.8%
$18.00
Masonry
$
580,912
7.8**%**
$12.49 $

580,912

7,8%

$12.49

Melals

$

437,480

5.9%

$9.40 $

437:**480**

5.9%

$9:40

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Therm

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Molat

Prot

Door

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Win
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Finishes
10 Specialfles
11
Equipment
$
13. Special Construction
15
Mechanical
16
Electrical
20
Des, Permits, Fees, **QA**
27c Contingenöy
SUBTOTAL: $ 7,419,711
69 E? GA CA CA SA CA CA **EA** 69, 69 69
45,620
0.6**%**
$0.98 $
45,620
0.6%
$0.98
225,176
3.0%
$4.84 $
225,176
3.0%
$4.84
166,910
2.3%
$3.63 $
168,910
2.3% $**3.63**
259,135
3,5**%**
$5.57 $
259,135
3.5%
$5.57
81,116
1.1%
$1.74 $
81,+16
1.1%
$1.74
105,000
1.4%
$2.26 $
105,000
1.4x
$2.26
255,000

3.49%
$5.48 $
255,000
3.4% $5:48

$
$
1,615,750
433,500
21.8%
$34.73 $ 1,815,750
21.8**%**
$34.73:
5.8%
$9.32 $
433,500
5.8%
$9:32
679,946
9.2**%**
$14.62 $
679,946
9.2%
$14:82
171,204
2.3%%%
$3.68 $
171,204
2.3%
33.50.
100,0%
$159.48 $
7,419,711
100.0**%**
$159.48
28a **Construction** Overhead
$

148,394
1,9%
$3.19 $ 148,394
1.9%
$3,19
28b Contractor's Fee (Lump Sum**)**
370,986
4.8%
SUBTOTAL:
519,380
$7.97 $ **370,988** $1146/
4.8%
$7.87
519,380
$11.16
(193,493)
(193,493**)**
TOTAL $ **7,745,598**
$170.65 $ 7,745,588
$170.65
Gross **SF**
$/GSF $
46.523
166.49
46,523
166.49
JAProj-newlap01902-733 Northumak Sports CenterEstimatelEstimate **DONOVOŹ**

Classification

Exhibit C

Design-Builder's Personnel Billing Schedule

Rate

Exhibit

Northbrook Sports Center

Design-Builder's Personnel Billing Schedule

CLASSIFICATION	RATE
PROJECT ARCHITECT/PRINCIPAL:	$185.00/HR
ASSOCIATE ARCHITECT:	$135.00/HR.
CADD TECHNICIAN**:**	$45.00/HR.
SPECIFICATION WRITER:	$40.00/**HR**.
ADMINISTRATIVE**:**	$35.00/**HR.**
CLERICAL:	$**28.00**/HR.
CONSTRUCTION PROJECT MANAGER:	$85.00/HR.
CONSTRUCTION SUPERINTENDENT**:**	$94.00/HR,